400 CHINA BASIN

Smoking & Vaping Rules and Policy

San Francisco, California 2025

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China Basin Owners Association Property is a NON-SMOKING BUILDING!

CHINA BASIN SMOKING AND VAPING POLICY

The Board of Directors has adopted this China Basin Smoking and Vaping Policy as an addendum to the DCC&Rs and other governing documents for this Association and therefore, a violation of this policy can be considered a violation of the DCC&Rs and the deed, as applicable by the current laws and ordinances of the United States, State of California and of the Ordinances of the City of San Francisco, and all of its agencies.

The Board of Directors has adopted this China Basin Smoking and Vaping Policy for purposes of maintaining the highest possible Quality of Life for its Owners and Residents, and due to the fact that instruments of smoking and vaping can pose a life safety risk to all inhabitants of the building if such instruments are misused, improperly stored, or/and disposed of incorrectly.

1. **SMOKING PROHIBITION.** Due to the irritation and known health risks of exposure to second-hand tobacco smoke, increased risk of fire and increased maintenance and cleaning costs, all forms of smoking are prohibited at all common areas of the property, including:

    a. On any part of the property that is a common element or exclusive use common element including but not limited to: the roof deck, elevators, garage, dog wash room, second floor recreational deck, business center, lobbies, main entrance (within 20' feet of main entrance and its stairs and ramps) etc.

2. **UNIFORM APPLICABILITY:** All of the Rules within the Policy are applicable to all Residents, their guests, business invitees, family, occupants, and visitors. If non-occupants and occupants of Owners of units violate any part of this policy (either in whole or in part), the Owner will be considered to have committed the violation(s) as Owners are responsible for their guests, visitors and business invitees. **Definition of Business Invitee.** The term "business invitee" shall include but is not limited to any contractor, tradesperson, agent, household worker, or another person hired by the owner or/and resident to provide a service or product.

3. **REASONABLE ACCOMMODATION AND TIME LIMITS.** The Board of Directors shall make reasonable accommodation, pursuant to relevant Federal and State laws and City of San Francisco ordinances and legislation to an Owner Resident and their unit's permanent occupants, who has a medical reason for treatment via the smoking or inhalation of THC Marijuana products. Proof of the need for reasonable accommodation must be provided in writing by a medical professional Although, it is encouraged that Owners and Residents attempt to smoke-less forms of THC intake treatment first, if possible. However, if use becomes a nuisance to others, the Accommodated (in writing) Owner of Resident will have to use forms of smoke and smell extraction (at the Owner's expense) if other Owners and Residents complain of nuisances related to smoke and smells penetrating through doors, walls or windows of neighboring units, as permissible by Law.

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Reasonable Accommodation Time Limits. Reasonable Accommodations may be granted for a fixed period of time at which time the owner or Resident is free to re-apply to the Board of Directors for further Reasonable Accommodation to be made, as permitted by Federal and State Laws and City and County ordinances.

> **Please note:** All Reasonable Accommodations granted will come with restrictions regarding disposal and storage which must be complied at all times during the life of the Reasonable Accommodation.

SMOKING PROHIBITION APPLICABILITY

"Smoking" or "to smoke" means and includes inhaling, exhaling, burning or carrying any lighted smoking equipment for tobacco or any plant or other weed. (SFHC 19F Section 1009.21(s)).
Smoking of products that are not tobacco, plant or other weed, such as steaming stones, is prohibited, so vaping is prohibited in all common areas, but not in units, provided that the vaping smell or/and use is not a nuisance to others.

Please note: A situation or behavior is considered a "nuisance" if there are more than 3 (three) complaints about the situation or behavior.

END OF POLICY